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**BEFORE THE  
FEDERAL MARITIME COMMISSION**

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**Docket No. 08-03**

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**FILED**

**MAY 31 2016**

**MAHER TERMINALS, LLC**

**Federal Maritime Commission  
Office of the Secretary**

**COMPLAINANT**

**v**

**THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY**

**RESPONDENT**

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**THE PORT AUTHORITY'S CONSENT MOTION FOR ENTRY OF A CASE  
MANAGEMENT ORDER**

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Respondent, the Port Authority of New York and New Jersey (the "Port Authority"), with the consent and agreement of Complainant, Maher Terminals LLC ("Maher") (collectively the "Parties"), submits this Consent Motion for Entry of a Case Management Order, which supersedes the Port Authority's previously filed Motion for a Case Management Order and Maher's objections to that motion. The Parties agree that additional discovery is not required. The Parties have met and conferred and respectfully request that the Federal Maritime Commission ("the Commission") enter a Case Management Order providing the following briefing schedule with respect to the Parties' submissions

- July 15, 2016 – Port Authority's initial brief to be filed
- August 19, 2016 – Maher's response brief to be filed
- September 16, 2016 – Port Authority's reply brief to be filed

The Port Authority's initial brief and Maher's response brief shall be limited to twenty-five (25) pages each, and the Port Authority's reply brief shall be limited to fifteen (15) pages. Maher reserves its right to seek leave to file a sur-reply, although the Port Authority reserves its right to oppose that request. The foregoing agreement concerning the briefing schedule expressly took account of counsel's professional commitments.

Accordingly, the Port Authority hereby requests that the Commission enter a Case Management Order with the proposed briefing schedule listed above with Maher's consent.

Dated June 2, 2016

Respectfully submitted,

Peter D. Isakoff <sup>13 June 2016</sup>

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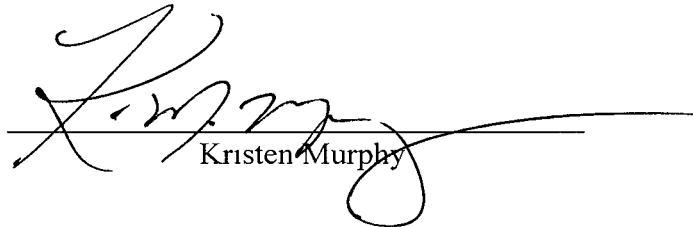
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*Attorneys for The Port Authority of  
New York and New Jersey*

**CERTIFICATE OF SERVICE**

I hereby certify that I have this day served the corrected version of the foregoing document upon the persons listed below in the matter indicated, a copy to each such person.

|                                                                                                                                                                                                          |                                                       |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------|
| <b><u>Via Federal Express and E-mail</u></b><br>Lawrence I Kiern<br>Bryant E. Gardner<br>Gerald A. Morrissey III<br>Rand Brothers<br>Winston & Strawn LLP<br>1700 K Street, N W<br>Washington, D C 20006 | Dated at Washington, DC<br>this 2nd day of June, 2016 |
| Richard P Bress<br>Latham & Watkins LLP<br>555 Eleventh St., N W<br>Washington, D C 20004                                                                                                                |                                                       |

  
Kristen Murphy

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OFFICE OF THE SECRETARY  
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June 2, 2016

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Office of the Secretary  
Federal Maritime Commission  
800 North Capitol Street  
Washington, D C 20573

Re Maher Terminals, LLC v The Port Authority of New York and New Jersey LLC 08-03 (FMC)

Dear Ms. Gregory

Enclosed, please find the original, five copies, and an additional copy on disc, of *The Port Authority's Consent Motion for Entry of a Case Management Order* dated June 2, 2016. If you have any questions with respect to the foregoing, please do not hesitate to call me.

Respectfully submitted,



Kristen M. Murphy